

tive branch is absolute and comprehensive as to all acts allegedly performed within the scope of official duty, the Court of Appeals was correct; if, on the other hand, the immunity is not absolute but rather one that is qualified or limited, an executive officer may or may not be subject to liability depending on all the circumstances that may be revealed by evidence. The concept of the immunity of government officers from personal liability springs from the same root considerations that generated the doctrine of sovereign immunity. While the latter doctrine—that the “King can do no wrong”—did not protect all government officers from personal liability, the common law soon recognized the necessity of permitting officials to perform their official functions free from the threat of suits for personal liability.⁴ This

⁴ In England legislative immunity was secured after a long struggle, by the Bill of Rights of 1689: “That the Freedom of Speech, and Debates or Proceedings in Parliament, ought not to be impeached or questioned in any Court or Place out of Parliament,” 1 W. & M., Sess. 2, c. 2. See *Stockdale v. Hansard*, 9 Ad. & E. 1, 113–114, 112 Eng. Rep. 1112, 1155–1156 (Q. B. 1839). The English experience, of course, guided the drafters of our “Speech or Debate” Clause. See *Tenney v. Brandhove*, 341 U. S. 367, 372–375 (1951); *United States v. Johnson*, 383 U. S. 169, 177–178, 181 (1966); *United States v. Brewster*, 408 U. S. 501 (1972).

In regard to judicial immunity, Holdsworth notes: “In the case of courts of record . . . it was held, certainly as early as Edward III’s reign, that a litigant could not go behind the record, in order to make a judge civilly or criminally liable for an abuse of his jurisdiction.” 6 W. Holdsworth, *A History of English Law* 235 (1927). The modern concept owes much to the elaboration and restatement of Coke and other judges of the sixteenth and early seventeenth centuries. *Id.*, at 234 *et seq.* See *Floyd v. Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (K. B. 1607). The immunity of the Crown has traditionally been of a more limited nature. Officers of the Crown were at first insulated from responsibility since the King could claim the act as his own. This absolute insulation was gradually eroded. Statute of Westminster I, 3 Edw. 1, c. 24 (1275) (re-